THE STATE versus

WONDERFUL VURANDE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J with Assessors Mrs. M. Chademana and Mr. J. G. Nish
MASVINGO: 4, 6 & 13 March 2026
Criminal Trial

B. E. Mathose, for the State
T. Nyoka, for the accused

DUBE-BANDA J:

[1] The accused appears before this court charged with the crime of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("Criminal Law Code"). It being alleged that on 28 May 2025, the accused unlawfully caused the death of Mervis Dinha (hereinafter referred as "the deceased") a female adult by striking her with an axe several times on the head and assaulting her all over the body intending to kill her or realising that his conduct may cause death and continued to engage in that conduct despite the risk or possibility.

[2] The accused was legally represented throughout the trial. He pleaded not guilty to the crime charged. The prosecutor tendered an outline of the State case, which is before the court, and the accused tendered into the record an outline of his defence case. In addition, the prosecutor tendered, with the consent of the accused, the following real and documentary exhibits: the post-mortem Report; axe handle, and its certificate of weight showing that it has the following measurements: weight 660 grammes, length 66,6 centimetres; a khaki stripped t-Shirt; khaki printed t-shirt with blood stains; floral grey boxer short with blood stains; blue checked boxer short with blood stains; green under wear with blood stains; and a white vandalised bucket.

[3] In his defence outline, the accused stated that he agrees with the version of the witnesses that they saw him holding an axe and looking for the deceased, who was his mother. This happened after he had a misunderstanding with the deceased. In addition, he stated that he did not cause the death of the deceased, but rather she fell fifty metres down a

cliff. It is stated that the fall was caused by the deceased panicking when she saw the accused holding an axe. It is stated that the injuries that caused her death were caused by the fall from the cliff. The accused stated that he tried to render first aid and realised that she was unconscious, and he left the scene and went to the shops, where he asked an unidentified lady to call the police and an ambulance. He prayed that he be found not guilty and acquitted of the crime of murder.

[4] The first prosecution witness was Rumbidzaishe Gwaragwara. Her evidence was that the deceased and the accused were her neighbours. On 28 May 2025 at around 1400 hours, she saw the deceased running passing by her homestead, and she said the accused wanted to kill her. After saying that, she ran to the homestead of another neighbour. After a short while, the accused followed and got to this witness's homestead and asked whether the deceased was at that homestead. He was carrying an axe. This witness and other persons were inside the kitchen; the accused entered the kitchen and checked behind the kitchen door. He was told that the deceased had passed by the homestead. From the kitchen, the accused went to the outside bathroom, still looking for the deceased. He realised that the deceased was not at that homestead. The accused then followed the direction the deceased had taken. After about thirty minutes, the accused returned, his T-shirt was blood-stained, and he no longer had an axe in his possession. The accused proceeded to his homestead. After a short while, he returned wearing different clothes, carrying a satchel, and said he was going to South Africa. Under cross-examination, this witness testified that she did not see the accused killing the deceased. It was put to her that the deceased fell from a cliff and died, her answer was that she saw the accused's clothes with blood stains. This court is satisfied that Rumbidzaishe Gwaragwara was a credible witness who had a good recall of the events. Her evidence was not challenged in any material respects, and there is no reason not to accept it.

[5] The second prosecution witness was Rundare Taruma. He is the father of the first witness, Rumbidzaishe Gwaragwara, and was in the same kitchen hut with the first witness when the deceased passed by and made the statement that the accused wanted to kill her. To this point, his evidence was materially similar to that of Rumbidzaishe Gwaragwara. In addition, he testified that he phoned the police about the incident, and before the police arrived, and in the company of the deceased's male friend, they followed the path that was taken by the deceased. They saw the body of the deceased

in the bush and decided not to go close to it before the arrival of the police. After the arrival of the police, an axe handle was found in the vicinity of the body of the deceased. Under cross-examination, this witness agreed that their area is mountainous. Where the body was found, there were no marks that could show that someone had been attacked at that place, showing that the deceased was killed elsewhere and her body was dragged to the point where it was found. He did not see the accused attack the deceased. He did not agree that the deceased fell from a cliff and died. This court is satisfied that Mr. Rundare Taruma was a credible and honest witness. He was not challenged in any material manner in cross-examination, and his account of what happened is accepted without qualification.

[6] The third prosecution witness was Angela Kwarama. Her evidence was that the deceased and the accused were her neighbours. On 28 May 2025, she was at her homestead, and she saw the deceased running, and she said, "Wonder wants to kill me with an axe." She continued running, following a path leading to the bush. After a short while, the accused arrived and asked whether the deceased was at that homestead. Before the witness could answer his question, he struck a twenty-litre bucket with an axe. After striking the bucket, he sighted the deceased and pursued her. She identified the bucket, which is before the court as an exhibit as the one struck by the accused with an axe. Under cross-examination, she testified that she did not see the accused attacking the deceased. This court is satisfied that Angela Kwarama was a very good witness, never stating more than she knew or believed. Her evidence is accepted without reservation.

[7] It is imperative at this stage to deal with an issue that arises from the evidence of the above three witnesses. It is common cause that "Wonder" is the name that the accused was known by in the village. The evidence of the three witnesses that the deceased said the accused wanted to kill her with an axe is hearsay. The prosecutor did not forewarn the court and the defence before he adduced this evidence that he would be introducing evidence of a hearsay nature, and the basis on which he sought its admissibility. It is important that the court and the defence be forewarned that the prosecutor is about to introduce evidence that is generally inadmissible and state the basis or exception under which he intends to introduce it. This is a salutary rule of practise and must always be observed where evidence is sought to be introduced as an exception to the general rule

of exclusion. However, Counsel for the accused did not object to the admissibility of this evidence. The silence of the defence Counsel amounted to an agreement to the admissibility of this evidence.

[8] The question to be decided is whether the statement by the deceased that the accused wanted to kill her with an axe amounts to a dying declaration. A dying declaration is hearsay evidence, and the admission of such evidence is regulated by s 254 of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. The common law requirements for the admissibility of a dying declaration are these: (a) the declarant must have died; (b) the statement can only be used to prove the way the deceased met his or her death; (c) the declarant must have had a settled hopeless expectation of death; (d) and, further that he or she would have been a competent witness at the time of the declaration. In the present case, the deceased would have been a competent witness at the time she made the declaration. She was under a settled, hopeless expectation of death in that she was fleeing from the accused, who was pursuing her armed with an axe. Therefore, the requirements of a dying declaration are satisfied in this case, and the statement that "Wonder wants to kill me with an axe" is admissible as a dying declaration.

[9] The fourth prosecution witness was Tavona Zhou, the investigating officer in this matter. His evidence is that the investigating team of police officers proceeded to attend to the scene of the crime and met Mr. Rundare Taruma, the second prosecution witness and the deceased's male friend. It was Rundare Taruma who, by phone, reported this matter to the police. The police proceeded to the homestead of the deceased, where the accused was seen, and it was as if he was preparing to go somewhere. Inside the deceased's house, the household goods and maize were scattered on the floor. The accused was then arrested and placed under the guard of some police officers, while these witnesses and other police details proceeded to the scene of the crime. The body of the deceased was found in the bush; it had a wound on the back of the head, and the clothes were soaked in blood. The leg had a fracture, and the body had bruises showing that it had been beaten and dragged over rocky terrain. This witness emphatically disputed that the deceased fell from a cliff, because she was not running in the bush; she ran following a footpath, which eliminated the possibility of her having fallen from a cliff.

[10] In addition, the investigating officer said that during the investigations, the accused did not mention that the deceased fell off a cliff. This witness stated that at the local shops, no one said the accused sought help for the deceased. This witness testified that during investigations, the police recovered blood-stained clothes in the house, and the axe handle was recovered in the bush under some tree leaves. The axe blade was not recovered. The vandalised bucket was recovered at the homestead of Angela Kwarama, the second prosecution witness.

[11] During the evidence in chief of the investigating officer, the prosecutor backed off from introducing evidence of indications and an extra-curial statement of the accused. However, under cross-examination, the defence counsel put questions to the witness which elicited an extra-curial statement and indications made by the accused. The question to be decided is whether the otherwise inadmissible extra-curial statement and indications elicited under cross-examination had become admissible. At common law, the content of an extra-curial statement and indications which would otherwise be inadmissible become admissible evidential material if elicited during cross-examination. However, the requirement is that the answer in question had to be a fair and direct answer to the question posed by the crossexaminer. A further requirement is that in the case of an unrepresented accused, he must beware of the risk his questions hold and that he must have desired the consequences. This last requirement does not apply in this case because the accused had the benefit of legal representation. See *R* v *Bosch* 1949 1 SA 548 (A); *S* v *Mokoena* 1978 1 SA 229 (O).

[12] In the present case, the witness was asked in cross-examination whether he recorded a warned and cautioned statement from the accused, and if so, what was his reply. In answer to this question, the investigating officer said statements were recorded from the accused, but he was always changing his version. In one version, he is alleged to have said he had an altercation with the deceased. He got angry and destroyed household property, and the deceased got afraid and escaped from the homestead. He said that after the deceased escaped, he remained destroying the doors to the house. The investigating officer was further asked whether the accused admitted to killing the deceased; his answer was that the accused admitted to killing the deceased by striking her with an axe handle. In addition, the investigating officer was challenged in cross-examination on how the axe handle was recovered. In answering this challenge, he was

emphatic that it was the accused, during indications, who led the police to recover the axe handle.

[13] The evidence of an extra-curial statement and indications were solicited in crossexamination. This evidence came about as a result of a fair and direct answer to the questions posed by the cross-examiner. This was not a cross-examination conducted by a lay person, but a legal practitioner. It is on this basis that the evidence of an extra-curial statement and indications are held admissible.

[14] Further in cross-examination, the investigating officer disputed that the body of the deceased was found at the foot of the mountain. He said that at the foot of the mountain, there is a river. This court is satisfied that Mr. Tavona Zhou, the investigating officer, was a good witness, clear-thinking, and obviously trained and professional. His evidence is accepted without qualification.

[15] The last prosecution witness was Dr. Godfrey Zimbwa. His evidence was that he is a medical doctor. He examined the body of the deceased and observed the following: a skull deep cut on the occipital area (back of the head), which exposed the bone. It was 4 cm with smooth edges. There was also a skull deep cut in the left parietal area (just above the ear). It was 3cm with smooth edges, and there was an underlying skull fracture. There was a fracture of the left ankle. The body had extensive bruises. There was also a neck fracture. He opined that the cause of death was head injury, neck fracture, and assault. The doctor testified that the bruises might have been caused by the body being dragged, and that the fracture of the neck and ankle might have been caused by an attack. In addition, the doctor testified that severe force must have been used to inflict these injuries, and there are very slim chances that the deceased could have survived such injuries. Under cross-examination Dr. Zimbwa was questioned about his qualifications. His evidence was that he has a degree in Medicine. In addition, the doctor testified that he had on-the-job training in Forensic Pathology and has been doing forensic work for nearly twenty-one years. He testified that there is a difference between inquiries inflicted before death and those after death. He did not believe that the injuries on the deceased were inflicted after death. This court is satisfied that Dr. Godfrey Zimbwa was a very good witness, clear thinking, and obviously very well trained and professional. His evidence is accepted without qualification.

[16] After the testimony of Dr. Godfrey Zimbwa, the prosecutor closed the State case, and the defence opened its case.

[17] The accused testified in his defence. In summary, his evidence was that on 28 May 2025, he had a dispute with the deceased about the name on the identity card of his young sister. He said they exchanged words until a misunderstanding arose, and the two ended up insulting each other. The deceased thought he was going to assault her, and she fled from the homestead. Before she fled, she said she was going to commit suicide. After the deceased fled, he took an axe, intending to go fetch roofing poles. On the way, he thought of the words uttered by the deceased and decided to follow her. He went to the neighbour's homestead, got to their kitchen and the toilet, looking for the deceased. The neighbours said they had not seen the deceased. He then proceeded to the second neighbour's homestead, who also said she did not see the deceased. He followed a path, and after about forty metres, she met the deceased. When the deceased saw him holding an axe, she panicked and started running. She then fell off the edge of a cliff and rolled downwards. When he got to her, she was lying on the ground. He held her and placed her head on his lap, and he felt some wetness from the deceased's head. He saw that she was injured on the back of the head and was bleeding. He tried to stop the bleeding using his t-shirt. He went back home and removed the blood-stained clothes, and wore clean clothes. He then went to the shops to look for assistance. He says he told his uncle about the deceased's injuries. He denied that he inflicted the injuries that caused the death of the deceased.

[18] Under cross-examination, he was asked the reason he slashed the bags of maize. His answer was that he was angry. He confirmed that the deceased fled the homestead because of his anger, and that he followed her armed with an axe. In addition, he confirmed that at the first neighbour's homestead, he looked for the deceased in the kitchen and the outside bathroom. He disputed that he axed a bucket at the homestead of Angela Kwarama. He further disputed that when he returned from the scene, he saw Rumbidzaishe Gwaragwara and Rundare Taruma. He said he merely passed through their homestead and did not see them. He disputed that he struck the deceased with an axe.

[19] This court is satisfied that the accused was a poor and unreliable witness in various respects in his evidence. He lied that he carried the axe to go and look for roofing poles. This was a lie because it was not told to the investigating officer, it is not in his defence outline, and it was not put to the witnesses in cross-examination. He lied that he did not strike the bucket with an axe at the homestead of Angela Kwarama. The bucket was produced as an exhibit by consent. It was damaged in a manner consistent with the evidence that it was struck with an axe. It was this violence, of striking the bucket with an axe, that caused Angela Kwarama to flee from her homestead. The accused lied when he said on his return from the scene, he did not inform Rumbidzaishe Gwaragwara and Rundare Taruma, of the injuries to the deceased because there was no one at their homestead. The witnesses were at their homestead; they saw him as he passed by and even noticed that he was no longer carrying an axe and that his clothes had blood stains. Again, after removing the blood-stained clothes, he saw the witnesses and told them that he was going to South Africa. The accused lied when he said he went to the shops to seek assistance for the deceased. If indeed he wanted to seek assistance for the deceased, he could have informed the neighbors that the deceased had suffered serious injuries. The accused was peddling falsehoods at every turn in his evidence. The version of the accused is so inherently improbable that it cannot be accepted as reasonably, possibly true. In other words, it is beyond a reasonable doubt false.

[20] It is common cause that there is neither direct evidence nor an eyewitness to the killing of the deceased. The prosecution relies on circumstantial evidence to show that the accused caused the death of the deceased. It is important to state that circumstantial evidence is no less cogent than direct evidence. On the contrary, it can sometimes be more compelling, as was stated in S v *Musingadi and Ors* 2005 (1) SACR 395 (SCA) at paragraph 20. In dealing with each piece of evidence and the inferences to be drawn therefrom, two important principles must be borne in mind. The first is that the court must examine all the evidence. A court does not look at the evidence implicating the accused in isolation to determine whether there is proof beyond a reasonable doubt, and so too it does not look at the exculpatory evidence in isolation to determine whether it is reasonably possible that it might be true. As was stated in *R* v *Hlongwane* 1959 (3) SA 337 (A) at 341A, the correct approach is to consider all evidence 'in the light of the totality of the evidence of the case'. The second principle, which the court must bear in mind in assessing all the evidence, involves the approach to be taken in drawing

inferences. Inferences are not to be mere speculation but are to be based on fact. The court in *R* v *Blom* 1939 (AD) 188 laid out two rules of logic to be followed. The first rule is that the inference sought to be drawn must be consistent with all proven facts. The second rule is that the proven facts must be such that they exclude every other reasonable inference.

[21] It is common cause and proved by evidence that the accused had a dispute with the deceased at their homestead. He became very violent, struck the maize bags with an axe, and struck the door to the house with an axe. The deceased, sensing danger she fled from the homestead. She got to the homestead of the immediate neighbours and informed Rumbidzaishe Gwaragwara and Rundare Taruma that the accused wanted to kill her. The deceased proceeded with her flight until she got to the second neighbour, Angela Kwarama, the third prosecution witness. She told this witness that the accused wanted to kill her with an axe. The accused pursued her and got to the homestead of Rundare Taruma and enquired about her whereabouts. He was told that she was not at that homestead. He did not believe that the deceased was not at that homestead; to satisfy himself, he checked behind the kitchen door and even went onto look for her in the outside bathroom. Satisfied that she was not at that homestead, he proceeded to the second neighbour. Again, he enquired whether the deceased was at that homestead. For no known reason, he struck Angela

Kwarama's bucket with an axe. At that point, he sighted the deceased at a distance and immediately pursued her. From that encounter with the accused, the deceased was not seen alive again.

[22] After a while, the accused returned from where he had pursued the deceased. The witnesses observed that he was no longer carrying an axe. His clothes were blood-stained. He proceeded to his homestead and quickly removed the blood-stained clothes and told the witnesses that he was returning to South Africa. The lifeless body of the deceased was found in the vicinity where she was pursued by the accused. The body had injuries consistent with an axe cut, e.g., it had a skull deep cut on the occipital area (back of the head) which exposed the bone. It was 4 cm with smooth edges. There was also a skull deep cut in the left parietal area (just above the ear). It was 3cm with smooth edges, and there was an underlying skull fracture. Dr. Godfrey Zimbwa testified that the smooth edges on the cuts noted on the deceased show that an axe was used to attack

her. On his return from pursuing the deceased in the bush, the accused did not inform anyone about the condition of the deceased. He merely changed his clothing and said he was returning to his base in South Africa, where apparently, he had been for the past seventeen years.

[23] In addition, the accused in his extra curial statement to the police admitted that he killed the deceased, although he added a lie that he used an axe handle. His indications led to the recovery of the axe handle. This court is satisfied that he hid the axe blade, which was not recovered. He did this because he wanted to support his version to the police that he struck the deceased with an axe handle.

[24] Counsel for the accused submitted that the prosecution has not proved the State's case beyond a reasonable doubt. Proof beyond a reasonable doubt is not synonymous with proof beyond a shadow of doubt.

[25] In *Miller* v *Minister of Pensions* [1947] ALL ER 372 at 373, the court said:

> 'Proof beyond reasonable doubt does mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence "of course it is possible, but not in the least probable", the case is proved beyond reasonable doubt, but nothing short of that will suffice'.

[26] In the English headnote in the matter of *S* v *Glegg* 1973 (1) SA 34 AD, it is put this way, that "proof beyond reasonable doubt cannot be put on the same level as proof beyond the slightest doubt, because the *onus* of adducing proof as high as that would in practice lead to defeating the ends of criminal justice." In fact, in real life, such proof will not be attainable. Insisting on such proof will leave communities vulnerable and exposed to those who commit serious crimes and seek to escape the reach of the law and accountability. It is in this regard that this court is satisfied that the circumstantial evidence presented by the prosecution weighed together created a unit of evidence which leads to only conclusion possible, namely that the accused attacked the deceased with an axe, inflicting the injuries which caused her death. Therefore, the version of the accused that the deceased fell from a cliff is beyond a reasonable doubt false.

[27] In attacking the deceased with an axe, causing the serious injuries observed by the witnesses and Dr. Goffrey Zimbwa, the accused intended to cause death, and he achieved his purpose, in that the deceased died as a result of the injuries inflicted on her. See *S* v *Mugwanda* 2002 (1) ZLR 547 (S); *S* v *Tailor & Anor* HB-126-22. This court would be failing to comply with its constitutional obligations if it were to allow the accused to hide behind a veil of falsehoods to escape accountability for this heinous crime.

[28] Having carefully weighed the evidence adduced in this trial, it is our finding that the State has proved its case beyond a reasonable doubt against the accused. In this case, the accused person is charged with murder as defined in s 47(1) of the Criminal Law Code. It is no longer necessary in our law to specify whether he is guilty of murder in terms of s 47(1) (a) or (b). See *Mapfoche & Anorr* v *The State* SC 84/21.

In the result, the accused is found guilty of murder as defined in s 47 (1) of the Criminal Law (Codification & Reform) Act [*Chapter 9:23*].

Sentence

[29] This court has found that this murder was committed in aggravating circumstances as defined in s 47 (3) of the Criminal Law Code.

[30] Sentencing is a process in which the court is required to weigh and balance a variety of factors to determine the measure of the moral blameworthiness of an offender. That measure is achieved by a consideration, and an appropriate balancing, of what the well-known case of *S* v *Zinn* 1969 (2) SA 537 (A), at 540G-H, described as a 'triad' consisting of the crime, the offender, and the interests of society.

[31] It is trite that in passing sentence the personal circumstances of the offender must be considered carefully. The offender is forty-two years old, with three minor children. He is not married. He is suffering from chronic conditions i.e., hypertension and diabetes. He is a first offender and has been in pre-trial incarceration for approximately ten months. In summary, this is all that can be said about the offender.

[32] The facts of this matter are so deeply unsettling to describe. The life of a mother was brutally and abruptly ended in the most vicious and brutal manner. The events leading to the murder of the deceased have been stated in the judgment; however, for the purposes of sentence, it is important to briefly restate the facts. The deceased was the mother to the offender.

A dispute arose between the two, and the details of the dispute has not been clearly articulated. The offender then armed himself with an axe, which conduct led the deceased to escape from their homestead. In her flight, she passed two homesteads, informing the residents therein that the offender wanted to kill her with an axe. The offender pursued her, passing through the two neighbouring homesteads, and at each homestead enquiring about the whereabouts of the deceased. He eventually sighted her and pursued her into the bush. She was sixty-two years old, and she failed to outrun a strong and physically fit forty-two-year-old man. He caught up with her and axed her to death in the most vicious manner possible. The post-mortem report proved that the deceased sustained fatal axe wounds to the head and the neck.

[33] Although it is correct that an offender should not be sacrificed on the altar of deterrence, it becomes necessary from time to time for the courts to send a strong message to society and would-be offenders to curb the proliferation of crimes. Femicide and gender-based violence remain a scourge that continues to ravage our country to its core. This case exemplifies the gravity and depth of this unrelenting problem. The courts must rise to the occasion and arrest this ugly tide. Women must be safe in the company of their husbands, in the company of their boyfriends, and even in the company of their sons. Not to have their lives ended in a brutal manner by those who should be their protectors. The courts must respond and do so appropriately to this wanton violence against women. The sentences must reflect that the killing of women will not be tolerated.

[34] The offender has been convicted of a serious offence. The seriousness of the crime depends upon the outlook of society, the indignation with which the crime is held in the eyes of society. In other words, the more repugnant a crime is in the eyes of society, the more public outrage is elicited, and the greater the punishment should ideally be. It bears emphasis that the way the murder was planned and executed generates a profound sense of disgust and condemnation.

Society should be protected against crime, which is attained through the prevention of crime and the deterrence of criminals by administering punishment to those convicted of crime. [35] The murder of the deceased was carefully planned and executed. This court has considered the personal circumstances of the accused presented by counsel in mitigation, has considered the interests of society, and has also considered the crime and the circumstances under which it was committed. The court has considered the fact that the accused is not remorseful for the callous killing of the deceased. A remorseful offender takes full responsibility for his actions and stops peddling falsehoods. This offender was merely feeling pity for himself that he was caught and would be made to account. The deceased died a painful death. The degree of violence exerted upon the deceased during her killing is deplorable. It is difficult to imagine what was in her mind when the offender caught up with her and started striking her with an axe. In such a case, the mitigating factors recede to the remote background. The offender's moral blameworthiness is very high. In the circumstances, the most serious punishment permissible in this jurisdiction is warranted. The offender is a cruel man and deserves to be removed permanently from society. This is the only sentence that fits the crime and the offender, and it meets the legitimate needs of society.

In the result, the appropriate sentence is as follows:

The offender is sentenced to life imprisonment.

National Prosecuting Authority, state's legal practitioners *Makiya and Partners*, accused's legal practitioners